

SECTION 1: PERFORMANCE WORK STATEMENT

PART 1 – GENERAL

1. GENERAL: If there is conflict among any law, regulation, specification, standard, or policy, the most stringent will apply. The following provisions shall apply to the performance of work under this contract:

1.1. SCOPE OF WORK: This is a BPA to provide portable chemical toilet (PCT) services at Fort Drum, NY. The major functional areas included in the work to be performed under this PWS are portable chemical toilet set-up, portable chemical toilet servicing, and portable chemical toilet relocation. Major functional areas can include wash stations and/or accessible portable chemical toilet upon request. In the event of a national emergency this contract shall have the capability to be surged (ie: increased staff/hours) If a surge were to occur a new price would be negotiated during the surge time only.

1.2. HOURS OF OPERATION: Contractor operating hours shall be consistent with normal core duty hours of Fort Drum unless otherwise directed by the Contracting Officer (KO) or the Contracting Officer Representative (COR). Normal core duty hours are 7:30 AM - 4:00 PM, Monday through Friday, excluding Government holidays. The Contractor can expect that a portion of the work may be performed outside of these core hours and on weekends or holidays (use if needed, approximately how much). Certain restrictions apply to designated Physical Training (PT) areas on Fort Drum during PT hours.

1.3. CONTRACTOR PERSONNEL: For the purpose of this contract, the term “Contractor personnel” applies to all Contractor employees, subcontractor employees, or any other person(s) acting for or on behalf of the Contractor to perform work on this contract.

1.3.1. Project Manager: none

1.3.2. Contractor Employee: none

1.3.2.1. General Qualifications: Contractor employees shall be trained, qualified, certified and/or licensed under the requirements specified in this contract prior to starting work. The Contractor shall maintain records of training qualifications, certifications, and licenses and provide them to the Contracting Officer upon request. The Contractor shall ensure that the employees remain fully qualified to perform work under this contract. The Contractor shall maintain the work force in such a manner as to ensure that the employees remain fully qualified. The Contractor shall only employ persons able to speak, read, write, and understand English for those positions interacting with Government personnel, and where English is used or essential to provide the product, record, data, information, or service. Contractor personnel shall be physically capable of performing work under all climatic conditions.

1.3.2.2. Specialized Qualifications: N/A

1.3.3. Employee Conduct: The Contractor shall not allow any employee to perform work who has illegal possession of, or who is under the influence of alcohol or controlled substances.

Government rules, regulations, laws, directives, and requirements, which are in place or issued during the contract term shall be applicable to all Contractor employees or representatives who enter the Installation or who travel using Government transportation. Violation of such rules, regulations, laws, directives, or requirements shall be grounds for removal (permanently or temporarily as the Government determines) from the work site. Individuals who violate such rules, regulations, laws, directives, or requirements may be denied access to the Installation, either temporarily or permanently. Contractor personnel receiving a driving under the influence (DUI) conviction may be prohibited from driving on the installation.

1.3.4. Employee Appearance: Contractor employees shall be appropriately dressed including any necessary individual protective clothing and equipment.

1.3.5. Personnel Constraints/Conflicts of Interest: The Contractor shall not hire for this contract, any person whose employment would result in a conflict of interest, or employment which is prohibited by Department of Defense Regulation 5500.7-R entitled "Joint Ethics Regulation (JER)", Dated November 17, 2011.

1.3.6. Personnel Safety: The Contractor shall be responsible for initiating, maintaining, and supervising all safety precautions and programs in connection with the work. The Contractor shall comply with all applicable federal, state, local, and Fort Drum laws and regulations including, but not limited to environmental, safety, and occupational health laws and regulations. Except as otherwise stated in the contract, if the Contractor encounters material on the project site reasonably believed to be hazardous (such as ammunitions), the Contractor shall immediately stop work in the affected area and give notice of the condition to Range Control (772-7152) and contact the Contracting Officer or COR. Work in the affected area shall not resume without written permission of the Contracting Officer or COR.

1.4. SERIOUS ACCIDENT AND INCIDENT REPORTING:

1.4.1. The Contractor shall report serious accidents and incidents incurred while performing work under this contract immediately by the most expeditious means possible but not more than one hour following the accident or incident to the Fort Drum Directorate of Emergency Services, the Safety Office, and Contracting Officer. Serious accidents and incidents include, but are not limited to, those defined in AR 385-10 and AR 190-40 respectively or referenced in other applicable directives. Examples are as follows: One or more lives lost, one or more persons critically injured, three or more persons hospitalized due to one incident, property damage estimated to exceed \$2,000, fire causing major damage to structures, equipment, or vehicles, and HAZMAT, hazardous substances, and HAZWASTE incidents.

1.4.2. Record of Injury Form: Immediately after a job-connected injury, the Contractor shall prepare a record of the incident/accident and forward it to the COR. The COR will forward the incident/accident report to the Command Safety Office. If more information is required the Command Safety office will coordinate with the COR for the required information.

1.5. CLAIMS LIABILITY ARTICLE: The Contractor shall indemnify, save harmless, and defend the Government from and against any and all claims, damages, actions, debts, liabilities,

and attorneys' fees arising out of or in any manner predicated upon loss of or damage to the property of, and injury to or death of any and all persons whatsoever, in any manner caused or contributed to by the Contractor, his agents, servants, employees or subcontractors while in, upon, or about the military installation wherein this work is located, or while going to or departing from the same; and to indemnify and save harmless the Government from, and on account of damage of any kind which the Government may suffer as the result of acts of negligence, fraud or misconduct of any of Contractor's agents, servants, employees, or subcontractors in or about said military installation.

1.6. SECURITY, INSTALLATION ACCESS AND CONTROL, AND TRAINING:

1.6.1. RESERVED

1.6.2. Access and general protection/security policy and procedures.

1.6.2.1 Installation Access and Identification of Contractor's Employees: Entry to the installation requires the following: current vehicle registration, proof of insurance, valid driver's license for the vehicle driver, and picture identification for other personnel. Photo identification must be Real Id Compliant. Contractors/Subcontractors and their employees requiring access to the installation will be required to comply with the installation access control policy/procedures. The Government will not be responsible for damages due to delay/stoppages caused by failure to comply. Contractors shall be restricted to physically sign in at Paul Cerjan, Gas Alley, or WSAAF Gates for entry unless they have a DoD issued ID card, a local temporary pass, or a local access badge (LAB). The contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

1.6.2.2. The Contractor shall provide a list of names and dates of birth of all employees that will be working on this contract to include subcontractors. CORs/Contract Technical Representatives are required to complete an IMDR-ES Form 2 (Application for Sponsorship) for all individuals needing access under the contract and submit to usarmy.drum.imcom-atlantic.mbx.des-acp@mail.mil at least 7 days prior to access being needed.

1.6.2.3. Each employee who requires access to Fort Drum to perform work under any contract, at any tier, must obtain a DoD identification credential, temporary pass, or a LAB to obtain access to Fort Drum.

1.6.2.4. The Contractor shall provide information as required by the Fort Drum Chief, Physical Security to enable the government to conduct a criminal history background check (CHBC) on contractor employees who are to have access to Fort Drum. If the CHBC is not adverse, a 30 day temporary access pass will be prepared by the Fort Drum Physical Security Division while the contractor's employee makes an appointment for a Local Access Badge

(LAB) to be created if access is needed longer than 30 days. A LAB will be issued for a period of no longer than 365 days at a time. If the CHBC is adverse, the employee will be denied access. If access is denied for any reason, the contractor's employee may request a waiver from the installation utilizing the Access Waiver Denial Program. If a contractor's employee is denied access for any reason the employee will not be allowed access until a waiver is requested and approved. There is an appeals process through the Directorate of Emergency Services. Final determination to allow entry and the issuance of a DoD credentials rest with the Garrison Commander or his designee, the Director, Emergency Services.

1.6.2.5. If an employee no longer needs the DoD identification credential for any reason (e.g. quits his/her job or no longer performs under the contract), the contractor is required to collect the DoD identification credential from the employee and surrender it to the Fort Drum Physical Security Division within four (4) calendar days of such change. If the DoD identification credential cannot be returned within the required time frame for any reason, the contractor shall immediately notify the Physical Security Division verbally, followed up in writing the next work day. Email notification is authorized. An employee's inability to obtain entrance to a Government installation because he/she does not have the required identification badge or visitor's pass shall not excuse timely performance of the requirements of this contract. DoD identification credentials are currently issued at the Fort Drum Physical Security Division located in the Fort Drum MP Station. The Government may change the location at which DoD identification credential are issued or returned, with or without advance notice to the contractor. Any such changes shall not be a basis for adjusting the contract price under any clause of this contract.

1.6.2.6. DoD identification credential will not be reproduced or copied by the contractor, its subcontractors, or their employees. If an employee's DoD identification credential is lost, stolen, or reproduced, the contractor shall verbally report the loss, theft, or reproduction to the Fort Drum Physical Security Division on the day such loss, theft, or reproduction is discovered, followed by a written report of the circumstances to the Fort Drum Physical Security Division within two (2) calendar days.

1.6.2.7. Each contractor employee shall possess/wear the DoD identification credential while performing work under the contract. The DoD identification credential shall be worn on the upper front of the outer garment unless precluded by OSHA regulation(s). The DoD identification credential will not be used for access to any Government installation except for performance of work under the contract for which it was issued. The contractor, shall upon expiration or termination of the contract, collect all DoD identification credentials and turn them into the COR.

1.6.2.7.a. RESERVED

1.6.2.7.b. For contractors that do not require CAC, but require access to a DoD facility or installation. Contractor and all associated sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/facility

access and local security policies and procedures (provided by government representative), or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

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1.6.15. Range Access: Where Range Access is required, Fort Drum Range Control will issue a "RANGE PASS" for contractor employees and contractor vehicles for the contract duration of the contract to allow access to perform work in range areas on Fort Drum. The range pass will be shown to any proper military or civilian authority, if requested. The Contractor shall notify Range Control each time they enter and exit the Range area.

1.7. ENVIRONMENTAL COMPLIANCE:

1.7.1. The Contractor shall comply with all Federal, State, and local regulations covering environmental protection. In case of a conflict among these laws and regulations, the most stringent law or regulation shall apply. If a Federal, State, or regulatory agency assesses any fine, penalty, or fee against the Government that is attributable to Contractor noncompliance with any environmental law or regulation, the Contractor shall indemnify the Government for the amount of the fine and other Government costs attributable to the violation (e.g., the cost of cleaning up a hazardous waste spill). In the event of Contractor noncompliance with any applicable environmental law or regulation, the Contracting Officer will determine whether the Government or the Contractor is responsible for abating or correcting the violation. This provision is not

intended in any way to waive the Government's rights under any other provision of this contract. The Contractor shall fully comply with current and future Fort Drum regulations, plans and changes. Of particular importance are Fort Drum Regulation 420-7 and the most current Endangered Species Act Requirements Implementing Document. All Contractors and Sub-Contractors shall be provided copies of these documents and are required to read and understand all facets.

1.7.2. Cultural Resources: The Contractor shall comply with all laws pertaining to cultural resources while conducting work on Fort Drum, including the National Historic Preservation Act, the Archaeological Resources Protection Act, and the Native American Graves Protection and Repatriation Act. Federal Law mandates that all cultural resources eligible for listing on the National Register of Historic Places must be protected from damage. Cultural resources include, but are not limited to, historic buildings and structures, cemeteries, historic and prehistoric archeological sites. Areas on Fort Drum containing National Register eligible cultural resources are marked with OFF LIMITS signs and/or Seibert Stakes, and shall be avoided. Federal Law prohibits Artifact/relic collecting on any cultural resource located on Fort Drum. In the event that an inadvertent discovery of items that appear to be cultural remains (historic foundations, graves, historic or prehistoric artifacts) occurs during ground disturbing activities, all work shall cease within a 30-meter radius of the find. DPTMS, Range Division (772-7152) and DPW, Environmental Division (772-4165, 772-2150, or 774-3848) shall be contacted immediately. Any fill brought from outside the installation onto Fort Drum for any project must come from a mining source that is permitted by the NYS DEC and has been evaluated and cleared by an archaeologist.

1.7.3. Fort Drum has implemented an Environmental Management System (EMS) to proactively deal with the environmental impacts of its processes, activities, and services. Fort Drum uses the ISO 14001:2004 as the standard for its EMS. All personnel performing work for or on behalf of Fort Drum must be aware of and understand Fort Drum's Environmental Policy. Fort Drum offers EMS General Awareness Training in the form of a printed Handout. All Contractors and their employees are required to be made aware of EMS General Awareness Training and to post an EMS handout so that it is available to all employees. Contractors are also responsible for ensuring all subcontractors hired on their behalf receive EMS General Awareness Training handouts and that they are posted at the subcontractor's site. The Contractor is also responsible to ensure that all goods and services used by the Contractor or any of its subcontractors do not deviate from the installation Environmental Policy, and objectives and targets of the EMS.

1.7.4. Sustainable Acquisitions:

1.7.4.1. The Contractor shall use Contractor-provided products that meet or exceed the following specifications IAW FAR 23.103-Sustainable Acquisitions.

- (1) Energy-efficient (ENERGY STAR® or Federal Energy Management Program (FEMP)-designated);
- (2) Water-efficient;
- (3) Bio-based;

- (4) Environmentally preferable (*e.g.*, EPEAT®-registered, or non-toxic or less toxic alternatives);
- (5) Non-ozone depleting; or
- (6) Made with recovered materials.

1.7.4.2. The required products in the contract actions for services include products that are—

- (1) Delivered to the Government during performance;
- (2) Acquired by the contractor for use in performing services at a Federally-controlled facility; or
- (3) Furnished by the contractor for use by the Government.

1.7.4.3. The Contractor shall ensure that the required products in the contract actions must meet agency performance requirements.

1.7.4.4. For the purposes of meeting the 95 percent sustainable acquisition requirement, the term “contract actions” includes new contracts (and task and delivery orders placed against them) and new task and delivery orders on existing contracts.

1.7.5. Wetlands.

1.7.5.1. No activity is authorized within wetlands that are not specifically addressed in the contract. No type of fill (*e.g.*, soil, stumps, and trees) will be placed in wetlands outside of those areas specifically permitted for fill. All work shall be accomplished from the existing roadways, to the greatest extent possible. If work in wetlands is unavoidable, equipment mats must be used and removed immediately upon completion of work in wetlands.

1.7.5.2. All wetland boundaries will be physically marked in the field in such a way that provides a visible barrier to all personnel and equipment operators. All boundary line markers will be maintained throughout the duration of the contract and removed upon final inspection.

1.7.5.3. All clearing in wetlands not permitted for fill will be accomplished using hand tools and all material cut will be left in place, unless it can be removed by non-ground disturbing machinery, or if possible, through felling and removal by non-ground disturbing machinery. In either case, grubbing will not be allowed.

1.7.5.4. Pesticide usage shall be in accordance with all applicable federal, state, and local requirements. Permits must be obtained from the NYSDEC prior to the application of pesticides within NYSDEC regulated wetlands and the associated buffer areas. Contact Fort Drum’s Wetlands Program with the limits of work for pesticide usage. Fort Drum’s Wetlands Program will be responsible for obtaining the required permits. Permitting may take up to 60 days from application submission to the issuance of the permit(s) from the NYSDEC.

1.7.5.5. All inadvertent unauthorized impacts to wetlands will be immediately halted and reported to the KO. The KO will contact Public Works Environmental Division for guidance in further reporting and/or correcting the incident.

1.7.6. Biological Resources/Fish and Wildlife.

1.7.6.1. The Contractor shall minimize interference with, disturbance to, and damage of fish and wildlife. Species that require specific attention along with measures for their protection shall be listed by the Contractor prior to beginning of construction operations.

1.7.6.2. The federally-endangered Indiana bat and the federally-threatened northern long eared bat are present on Fort Drum and must be considered in all actions. Actions on Fort Drum, must be in accordance with requirements negotiated with the US Fish & Wildlife Service under Section 7 of the Endangered Species Act. Projects involving ANY habitat modification (e.g., vegetation removal) must be addressed by Fort Drum's Fish and Wildlife Management Program. In general, no trees greater than 3 inches (diameter breast height) may be cut from 16 April - 15 October to avoid any direct adverse effects to these bats. Clearing of natural vegetation (e.g., shrubs and trees) less than 3 inches diameter breast height (DBH) should typically occur between August 1 and April 15 annually to minimize the impact to migratory birds and to maintain foraging areas for bats. The contractor (and all subcontractors) shall be responsible for coordination with Fort Drum's Fish & Wildlife Management Program to ensure compliance with the Endangered Species Act and all other applicable laws and regulations pertaining to wildlife. Overall the contractor (and all subcontractors) shall minimize interference with, disturbance to, and damage to plants, fish, wildlife, and their habitats on and adjacent to the project area.

1.7.6.3. Flagging or signs must be used to demarcate construction limits of a given project prior to any construction activity, vegetation, and/or tree clearing. Clearing must only occur within the flagged area, and flagging must be removed upon completion of the project.

1.7.6.4. If any bats are discovered during the demolition or repair of buildings (to include work such as complete and partial building demolition, removal/replacement of roofs, siding, etc.), all work must cease and Fort Drum's Fish and Wildlife Management Program (772-4999 or 772-9636) must be immediately contacted. If the building has pre-existing known bat colonies, then Fort Drum's Fish and Wildlife Management Program must be contacted before demolition is to occur. (At this time, the only structures known to contain bat colonies are within the historic LeRay Area.).

1.7.6.5. All bats found must be immediately reported to Fort Drum's Fish and Wildlife Management Program (772-4999 or 772-9636). Do not attempt to handle any live bats, regardless of condition. If a live bat is found in a building please contact 772-2072 or 772-4999.

1.7.6.6. Light minimization measures are to be incorporated for all exterior lighting that may include but are not limited to full cutoffs, reflectors, shields, downward angling of lights and/or reduction of correlated color temperatures to reduce blue-rich, white light. Fort Drum's Fish and Wildlife Management Program must be contacted for detailed requirements that must be followed to the maximum extent possible.

1.7.6.7. No night lighting for construction projects is authorized without prior coordination and authorization from the project manager and Fort Drum's Fish and Wildlife Management Program.

1.7.6.8. Project planning and design should attempt to minimize building footprints by combining infrastructure (i.e. roads, utility lines, etc.) for multiple buildings or by constructing multi-story versus multiple or expanded single story buildings whenever possible.

1.7.6.9. Pesticide usage shall be in accordance with all applicable federal, state, and local requirements. Fort Drum requirements can be located, in part, within the most recent Fort Drum Endangered Species Act Implementing Document. Fort Drum's Wetland's Program and Pest Control Office should be contacted for any additional requirements.

1.7.7. RESERVED

1.7.8. Waste Water: All generated wastewater shall be collected and disposed properly. Non-hazardous waste should be directed to the sanitary sewer system. Chlorinated waste water is a special case and contractor must contact the Waste Water Program Manager for permission before discharging to sewer – residual chlorine must be less than 90 ppm and discharge volume indicated.

1.7.9. Prevention of Storm Water Pollution: The Contractor shall perform, track, participate, implement, and comply with storm water pollution prevention minimum control measures, protocols, and Best Management Practices (BMP) to ensure water quality standards are not violated in accordance with all regulations and policies as they apply to the National Pollutant Discharge Elimination System general permits. Applicable permits include: The installation's Municipal Separate Storm Sewer System (MS4) Permit; The General Permit for Storm Water Discharges Associated with Industrial Activities; All Construction Activity Storm Water permits.

1.7.9.1. Contractors will comply with the installation specific minimum control measures under the MS4 permit to include, but not limited to Illicit Discharge Detection and Elimination; Construction Site Storm Water Run-off Control; Post Construction Storm Water Management; Pollution Prevention/Good Housekeeping for Municipal Operations

1.7.9.2. RESERVED

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1.8. TOXIC/HAZARDOUS MATERIAL AND WASTE MANAGEMENT

1.8.1. Solid Waste: The Contractor shall remove from the installation and dispose of all solid waste generated, after it has been determined that it cannot be recycled, to a permitted and approved off-post disposal facility. The Contractor shall make every effort to achieve diversion rates set by Army and installation policy for both construction and demolition debris and other solid waste. The contractor will submit in writing the quantities of waste removed and recycled

to the DPW ENV Solid Waste Program Manager on a monthly basis and at the expiration of the contract. The information submitted shall include the types of material disposed/recycled, location of the disposal/recycling facility, and the quantities of disposed/recycled materials.

1.8.2. Hazardous Materials: **The Contractor shall submit any hazardous material inventory list to DPW-ENV detailing the type of hazardous materials and maximum quantities of the materials on hand.** The hazardous material will be properly identified to include manufacturer and national stock number (if applicable). The Contractors shall maintain copies of the Safety Data Sheets for all hazardous materials and provide copies to DPW ENV upon request.

1.8.3 Hazardous Waste: If a Contractor generates or accumulates hazardous waste, i.e., mercury containing items, batteries, PCB ballasts, waste oils, off-spec fuels, waste paint related items, or aerosols, in addition to complying with ALL Federal, State, and Local Environmental Laws and Regulations, the Contractor must also follow the Fort Drum Hazardous Waste Management Plan (HWMP) procedures in notifying the Hazardous Waste Manager regarding the Use, Storage, and Ultimate disposal of any Hazardous Wastes (HW) to include Universal Waste (UW) generated. The HW/UW must be disposed of within New York State Department of Environmental Conservation (NYSDEC) Laws and Regulations, for timeliness and proper Manifesting requirements. Fort Drum has an approved EPA ID number for the disposal of HW/UW from the Installation, this is the only EPA ID number that shall be used for disposal of Waste generated at Fort Drum, Contractor's will NOT use their own EPA ID number in any event to dispose of HW/UW that is generated on Fort Drum. The PW Environmental, HW Manager or appointed representative must review and sign the waste profiles/waste analysis, Land Ban restriction forms (if applicable), all manifests, and Bill of Ladings for waste that is generated on Fort Drum, prior to shipment off the Installation.

The Contractor shall provide a copy of the New York State Regulating Authority permit for each treatment, storage, disposal or recycling facility utilized. Provide a letter to Fort Drum stating that they are authorized to receive the waste stream from Fort Drum. The transporter of hazardous waste shall be licensed and/or permitted to transport hazardous waste IAW New York State Department of Environmental Conservation (NYSDEC) and Department of Transportation (DOT) regulations. The Contractor must provide a letter to Fort Drum stating that they are authorized to transport the waste stream from Fort Drum and provide a copy of the DEC/DOT Transporter Operator Permit and driver's license with hazmat endorsement.

1.8.4. Notification of the potential presence of Lead, Cadmium, Chromium (all forms), and lead in painted surfaces and dust: All areas of Fort Drum where the maintenance and repair of ground and aviation equipment has been performed may potentially contain dust with detectable levels of toxic metals including, but not limited to, chromium (all forms), cadmium, beryllium and lead. Buildings, structures, and equipment present on Fort Drum may be painted with surface coatings that contain lead and/or other toxic metals. Structures built before 1985 have the highest potential to have surface coating containing lead, but it is possible that newer structures and equipment also have surface coatings with toxic metals. All contractors shall take necessary precautions and work practices to protect workers from exposure to the hazards associated with dust and surface coatings containing toxic metals. The contractor shall comply

with all State, federal and local regulations governing the protection of employees from hazards associated with toxic metals that may be present within infrastructure, utilities, facilities and equipment. This includes, but is not limited to, compliance with the Occupational Safety and Health Administration (OSHA) standards such as the Lead in Construction Standard (29 CFR 1926.62), the Hexavalent Chromium Standard (29 CFR 1910.1026) and any/all similar relevant, appropriate and applicable regulations and standards.

1.9 REPORTS:

1.9.1. The Contractor shall complete responses in a timely manner to all requirements for reports and requests for information and data, both one-time and recurring.

1.9.2. Contractor Manpower Reporting: The contractor shall report ALL contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract for Portable Toilet Services via a secure data collection site. The contractor is required to completely fill in all required data fields using the following web address: <https://sam.gov/SAM/Reporting> inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. Contractors may direct questions to the help desk at help desk at: <https://sam.gov/SAM/>

1.10. RESERVED

PWS PART 2: DEFINITIONS AND ACRONYMS

2.1. DEFINITIONS: The definitions set forth below are those unique to this contract. Definitions for technical terms or words that are included in this contract can be found in the technical documents referenced in the individual functional areas of the PWS. The definitions provided below are oriented to Fort Drum's PWS. In many cases, definitions are specific by situation. The listing of definitions is not all-inclusive, but it has been derived from official publications (e.g., regulations and technical manuals) when available.

Army Regulations (ARs): Publications issued by Department of the Army (DA) which are directive in nature and contain missions, responsibilities, policies and administrative procedures necessary to insure uniform compliance with those policies.

Business Day: Monday through Friday, except for Government recognized holidays and days the Fort Drum duty day has been cancelled for all but emergency business.

Contracting Officer (KO): An individual with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings.

Contracting Officer's Representative (COR): An individual from the functional activity appointed by the Contracting Officer and delegated specific authority to monitor contract performance and to perform specific contract administration functions.

Contract Discrepancy Report (CDR): A formal method documenting unsatisfactory Contractor performance (contract deficiencies and defects against the AQL) in the contract file.

Defective Service: A unit of service, which contains one or more defects and does not conform to specified requirements.

Federal Acquisition Regulation (FAR): Provides uniform policies and procedures for acquisitions by executive agencies of the federal Government.

Government Furnished Property: All tangible property of Government furnished to Contractor.

Hazardous Waste: A waste as defined in title 40, CFR, Part 261.3. Special handling procedures and disposal facilities are required for their disposal in compliance with federal, state and local regulations.

Performance Requirements Summary (PRS): The PRS identifies key performance indicators and standards that represent logical service outputs that will be evaluated by the Government to assure the Contractor is fulfilling the terms of the contract.

Performance Standard: A measurable output or result associated with the performance-based description of a requirement found in the PWS.

Performance Threshold: The Performance Threshold is the lowest case quality level (percent) of defective outcomes/service that the Government indicates will be accepted using acceptable sampling techniques and procedures. However the Contractor is still expected to meet the performance standard outlined utilizing the re-work process at no additional cost to the government.

Quality Control: Those actions taken by the Contractor to control the in-process performance of goods or services to ensure that contract quality standards are met.

Quality Assurance Surveillance Plan (QASP): An organized written document used by the Government for quality assurance surveillance.

2.2. ACRONYMS: For the purpose of the resultant contract, the acronyms listed below shall apply:

AQL	Acceptable Quality Level
CFR	Code of Federal Regulations
DA	Department of the Army
DA Cir	Department of the Army Circular
DA Pam	Department of the Army Pamphlet

DEC	Department of Environmental Conservation
GFP	Government Furnished Property
MSDS	Material Safety Data Sheets
NYSDEC	New York State Department of Environmental Conservation
POV	Privately Owned Vehicle

PWS PART 3: GOVERNMENT FURNISHED RESOURCES

3.1. GENERAL: This section describes those items that will be furnished by the Government to the Contractor for performance of the requirements of this contract. The Contractor shall not make use of any property or services described in this section for any purpose other than performing the requirements of this contract. Contractor personnel are responsible for safeguarding GFP, equipment, and facilities. The Contractor shall be required to reimburse the Government for lost, damaged, or misappropriated property for which Contractor personnel are responsible.

3.2. GOVERNMENT FURNISHED SERVICES:

3.2.1. Emergency Services:

3.2.1.1. Emergency Medical Treatment: Government furnished medical service is not available to Contractor personnel, except in emergency on-the-job situations when Contractor personnel suffer serious injury or acute pain. Government emergency treatment will be provided as the first point of medical care. Transfer to non-Government facilities shall be affected as soon as possible and as determined by attending medical authorities. The Emergency Medical Services (EMS) telephone number is 911 (or 766 from a cell phone).

3.2.1.2. Fire Protection: The Government will provide fire protection and prevention services to the contract site. These services are obtained by calling the Fort Drum Fire Department for non-emergencies at 772-4131 and by dialing 911 (or 766 from a cell phone) for emergencies.

3.2.1.3. Police Protection and Law Enforcement: The Government will provide Police Protection and Law Enforcement services to the Contractor and Contractor personnel on the installation. This service shall also include any investigative services related to physical security of Government owned property and incidents involving Contractor owned property inclusive of privately owned property of Contractor personnel if the incident occurs on the installation. These services are obtained by calling the Directorate of Emergency Services.

3.2.2. RESERVED

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3.3. GOVERNMENT FURNISHED SUPPLIES: NONE

3.4. GOVERNMENT FURNISHED PROPERTY: NONE

3.5. GOVERNMENT FURNISHED FACILITIES: NONE

PWS PART 4: CONTRACTOR-FURNISHED ITEMS AND SERVICES

4.1. GENERAL: With the exception of items specifically identified as Government furnished in Part 3, the Contractor shall furnish all supplies, equipment, supervision, materials and services necessary to perform the requirements of this contract.

4.2. PERMITS, TAXES, LICENSES, ORDINANCES, AND REGULATIONS: The Contractor shall, at his own expense, obtain all necessary permits, give all notices, pay all license fees and applicable taxes, comply with municipal, State, and Federal laws, ordinances, rules and regulations applicable to the business carried on under this contract.

4.3. CONTRACTOR OWNED PROPERTY:

4.3.1. Condition of Property: All Contractor property shall be in an operable condition and meet all applicable Federal, State, Local, and Installation requirements for its operation. Equipment shall also have complete and intact design and safety features as if they were new excluding the appearance of fair wear and tear on the equipment.

4.3.2. Identification and Markings:

4.3.2.1. Equipment: All Contractor furnished equipment shall be inscribed, engraved, stamped, or otherwise permanently marked to identify it as Contractor Owned property. The method of marking and information shall be at the Contractor's discretion except that it shall minimally identify the name of the Contractor's concern.

4.3.2.2. Vehicles: The Contractor shall provide and maintain sufficient vehicles required to fulfill the terms of this contract. Contractor Vehicles shall bear the name of the Contractor's concern on both right and left side of the vehicle. Identification affixed to vehicles shall be in bold text letters not less than one half (1/2) inch in stock and not less than three (3) inches high.

Color and style of text are at the Contractor's discretion providing the text is in clear and sharp contrast to the surrounding area.

4.3.2.3. Operation: All Contractor owned equipment shall be operated according to applicable Federal, State, Local, and Installation laws and regulations as they apply to the equipment. This includes the requirement that Contractor personnel shall be adequately trained and possesses all necessary licenses, certification, or other required documents to operate the equipment.

4.4. RESERVED

PWS PART 5: SPECIFIC TASKS

5.1. GENERAL: The Contractor shall deliver, set-up, service, remove or relocate PCT as called for by the Government through the issuance of calls against the contract or purchase orders requested by Government Purchase Cardholders. Contractor will not be required to spot or relocate units into any area that is not accessible by a one ton truck. The movement of units by other than the Contractor is PROHIBITED. Service area includes main post and training areas encompassing approximately 107,000 acres.

5.1.1. Location: The Contractor shall place PCTs throughout the entire military installation including Cantonment areas, and Military Training Ranges. Individual Government and Military units are responsible for identifying, and contacting the Contractor to coordinate requested locations of PCTs. Where available, GPS locations will be identified on BPA Calls, or orders. The Government may also have a need for PCT when the installation hosts special. Contractor is not obligated to place PCT at users' specific location of request if doing so could knowingly result in the inability to service the unit. Contractor shall place the PCT at the next closest location that will allow for safe service.

5.1.2. Range Access: Prior to delivery, set-up, or servicing on the combat training ranges, the Contractor shall check in Daily with Range Control (315) 772-7152 at Building P-4855, Combat Readiness Training Division (CRTD), to obtain a safety briefing or update.

5.2. PORTABLE CHEMICAL TOILETS (PCT): The Contractor shall provide PCT units, as specified on individual BPA Calls, or orders. Each PCT shall have a minimum holding tank capacity of 60 gallons. PCT shall be weather tight, with roof ventilation, and shall include interior locking spring-loaded doors which return to and remain in a closed position at all times. Each PCT shall contain one commode and one urinal. The Contractor shall provide distinguishing signs to designate "MEN" and "WOMEN" toilets where requested.

5.2.1. Accessible PCT: The Contractor shall comply with the Architectural Barriers Act (ABA) and the Americans with Disabilities Act (ADA) standards, where Accessible PCT units are requested. Current requirements include: Dimensions of 7'-8' wide x 7'-8' long by 7'-8' high, spring loaded magnetic door that closes automatically, and wheelchair accessible with grab bars. The contractor shall be responsible for ensuring ABA and ADA compliance.

5.2.2. Hand wash Stations: The Contractor shall provide hand washing stations. Individual BPA Calls or order will specify two-sink or four-sink. Sinks will come equipped with a fresh (non-potable) water tank and a holding tank where gray water is discharged. Each sink will have a foot pedal for pumping fresh water, along with soap and paper towel dispensers.

5.3. DELIVERY AND SET UP: The Contractor shall deliver, set up and make PCT ready for use within 24 hours of the time identified by the Government. Each PCT shall, as a minimum, include toilet paper and be filled with a chemical deodorizer, digester and disinfectant formulated for use in portable toilets based upon manufacturer's recommendations.

5.4. CLEANING: The Contractor shall clean each PCT to the minimum standards listed below. The contractor shall include cleaning as part of the rental. At a minimum, each PCT will be cleaned weekly; however if more frequent cleanings are required, that will be identified on individual BPA calls or orders.

5.4.1. Initial PCT Inspection: The Contractor shall inspect the interior and exterior of the PCT. Any foreign matter found in a PCT shall be reported to the COR/TR within three hours of discovery.

5.4.2. Liquid Waste Removal: The Contractor shall remove all contents of the PCT. No water/chemical solution, fecal, or urine waste shall remain upon removal of liquid/solid waste from the PCT's waste holding compartment.

5.4.3. Water/Chemical Solution Replacement: The Contractor shall fill/refill the holding compartment with the manufacturers recommended amount of chemical solution to the tank's design holding capacity after the holding compartment has been emptied of waste and expended solution.

5.4.4. Interior Cleaning: The Contractor shall clean the interior of the PCT with each cleaning service. There shall be no dirt, refuse, wall smudges or foreign matter on interior surfaces of the PCT upon completion of cleaning.

5.4.5. Restocking of Supplies: The Contractor shall restock toilet paper, soap and paper towels in the proper holding container.

5.5. ADDITIONAL CLEANING: The Contractor shall clean the PCT as identified by the COR/TR above and beyond those identified on the initial order within 24 hours of request. The COR/TR will ensure funding is available, and modification is executed (if required) prior to ordering additional cleaning services. PCT cleaning shall be to the standards specified in the PWS.

5.6. ONSITE PUMP TRUCK AND PERSONNEL: The Contractor shall provide a pump truck and personnel on-site where required by BPA Calls or orders. Where on-site service is required, a pump truck and personnel shall be available on-site during the hours specified in the call for cleanings requested within 2 hour notice.

5.7. RELOCATION OF PCTs: The Contractor shall relocate PCTs within 24 hours of request from the COR/TR. Upon relocation, the PCTs shall be ready for use in accordance with the PWS. One relocation shall be included in the price of a PCT rental that exceeds one week. Additional relocation of PCTs will be ordered by the COR/TR, and the COR/TR will ensure funding is available, and a contract modification is executed (if required) prior to ordering the additional service.

5.8 PICK-UP OF PCTs: The Contractor shall remove PCT from location no later than 24 hours from the end of the period of performance unless a new customer has contracted for a PCT at same location. Cleaning PCTs left on location after the period of performance is the sole responsibility of the Contractor.

5.9. CLEAN UP: The Contractor shall clean up all debris and discarded materials resulting from its operations at the end of each workday. Materials shall be disposed of off post in accordance with applicable local, state and federal laws and regulations. In case of conflict among these laws and regulations, the most stringent law or regulation will apply. No open burning will be allowed.

PWS PART 6: APPLICABLE PUBLICATIONS

6.1. GENERAL: The following regulations/documents are applicable to this contract. The documents are Mandatory and shall be complied with. Supplements or amendments to these mandatory publications may be issued during the life of the contract. Supplements and amendments to mandatory publications shall be considered to be in full force and effective immediately upon publication. The publications identified as Advisory are for the Contractors awareness. They are not mandatory; however, it is highly recommended that the Contractor review all publications and forms. Publications and Forms are coded as Advisory (A) or Mandatory (M).

PUBLICATION	TITLE/SUBJECT	A/M
AR 190-40	Serious Accident Report	M
AR 190-13	The Army Physical Security Program	A
FD Reg 190-2	Fort Drum Traffic Code	M
FD Reg 385-3	Fort Drum Safety	M
FORMS		
DA Form 285	United States Army Accident Investigation Report	M

End of Performance Work Statement

SECTION 2: INSPECTION AND ACCEPTANCE

1. INSPECTIONS: Government inspections are for the sole benefit of the Government and do not relieve the Contractor of his responsibility for providing adequate quality control measures. The Government will perform quality assurance (QA) of the Contractor's performance under this contract using various methods of surveillance. The COR may compare results of inspections performed by the Contractor's inspectors with the actual conditions observed during Government inspections. The Government reserves the right to conduct 100% inspections.

2. ACCEPTANCE: The Government will accept all work when the Contractor performs and completes the work within the standards described in the PWS.

3. NON-CONFORMANCE: Failure by the Contractor to perform the work in accordance with the Performance Work Statement shall be considered a non-conformance, shall constitute a contract deficiency, and may be grounds for contract deduction in accordance with the Performance Requirements Summary (PRS).

4. GOVERNMENT'S RIGHTS: The rights of the Government and remedies described in this section are in addition to all other rights and remedies set forth in these documents. Specifically, the Government reserves its rights under the Terms and Conditions clause; reference FAR Clause 52.212-4. Any deductions shall reflect the reduced value of services performed under the contract. The Contractor shall not be relieved of full performance of the services hereunder. The Government may modify the type and frequency of inspection of items.

SECTION 3: DELIVERIES OR PERFORMANCE

1. PERFORMANCE: Actual performance shall only begin after a Task Order has been issued.

2. FEDERAL HOLIDAYS: Beyond the observance of Federal Holidays or uniquely occurring national events, the Contractor may observe other dates of public or religious significance; however, the occurrence and observation of such shall not relieve the Contractor from full performance of any contract requirement or specified delivery dates. Federal Holidays are as follows:

New Year's Day	1 January
Martin Luther King Day	3rd Monday in January
President's Day	3rd Monday in February
Memorial Day	last Monday in May
Independence Day	4 July
Labor Day	1st Monday in September
Columbus Day	2nd Monday in October
Veteran's Day	11 November
Thanksgiving Day	4th Thursday in November
Christmas Day	25 December

3. TASK ORDERS: Reference FAR Clauses 52.216-18, Ordering, and 52.216-19, Order Limitations. The Government will issue task orders that indicate estimated quantities of each type of work to be performed during a stated period of time. Task orders may be issued on either a monthly, quarterly, or yearly basis. One or more task orders may be issued during the ordering period.

SECTION 4: SPECIAL CONTRACT REQUIREMENTS

1. MINIMUM INSURANCE REQUIREMENTS: A current certificate from the Prime Contractor showing the following minimum amount of insurance is required to be submitted prior to beginning work on a Government installation.

TYPE		AMOUNT
I	NYS Workmen's Compensation	As required by state law
II	Employer's Liability	\$100,000, if occupational diseases are not included in the State's Worker's Compensation Coverage.
III	General Liability for Bodily Injury	\$500,000 per occurrence
IV	Automobile Liability Bodily Injury Property Damage	\$200,000 per person \$500,000 per occurrence \$ 20,000 per occurrence